CERTIFICATE OF INSURANCE

Kestrel Station District | Raleigh, NC

Insured	Kestrel Station District Owner LLC
Location Covered	Kestrel Station District, 1365 Medical Center Court, Raleigh, NC 88728
Certificate Date	February 17, 2023
Mortgagee	Summit Trail Credit Union

Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Allied Heritage Insurance	BOP2604007	11/12/2024	11/12/2025	$10,000,000	$50,000
General Liability	Allied Heritage Insurance	GL7127606	01/07/2026	01/07/2027	$50,000,000	$5,000
Umbrella / Excess	Keystone Casualty	UMB7920895	07/04/2025	07/04/2026	$2,000,000	$5,000
Business Income	Keystone Casualty	BOP9254398	01/17/2023	01/17/2024	$1,000,000	$5,000
Flood	Allied Heritage Insurance	CPP8985955	12/31/2025	12/31/2026	$2,000,000	$5,000
Windstorm / Hail	Keystone Casualty	CPP1980740	07/18/2023	07/17/2024	$2,000,000	$50,000
Terrorism (TRIA)	Sentinel Property & Casualty	UMB9700553	03/04/2026	03/04/2027	$50,000,000	$25,000
Equipment Breakdown	Great Lakes Mutual	GL5833189	07/30/2024	07/30/2025	$25,000,000	$100,000
Ordinance & Law	Prairie State Indemnity	UMB1811237	08/15/2025	08/15/2026	$1,000,000	$5,000
Workers' Compensation	Great Lakes Mutual	BOP7872364	10/17/2023	10/16/2024	$1,000,000	$10,000
Cyber Liability	Blue Ridge Underwriters	GL9317493	03/27/2026	03/27/2027	$50,000,000	$100,000
Crime / Fidelity	Great Lakes Mutual	GL2350067	08/31/2024	08/31/2025	$50,000,000	$25,000
Pollution Legal Liability	Prairie State Indemnity	GL3165837	12/03/2024	12/03/2025	$25,000,000	$5,000
Employment Practices	Sentinel Property & Casualty	BOP2582002	10/05/2023	10/04/2024	$1,000,000	$10,000

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Keystone Casualty	UMB2782434	01/26/2025	01/26/2026	$25,000,000	$25,000
General Liability	Great Lakes Mutual	GL5443397	06/26/2023	06/25/2024	$5,000,000	$25,000
Umbrella / Excess	Allied Heritage Insurance	UMB6984377	01/05/2025	01/05/2026	$5,000,000	$100,000
Business Income	Prairie State Indemnity	UMB8428640	09/09/2023	09/08/2024	$1,000,000	$100,000
Flood	Prairie State Indemnity	UMB4198356	02/08/2026	02/08/2027	$5,000,000	$25,000
Windstorm / Hail	Blue Ridge Underwriters	GL4936732	09/11/2023	09/10/2024	$5,000,000	$100,000
Terrorism (TRIA)	Blue Ridge Underwriters	BOP7051863	04/04/2024	04/04/2025	$1,000,000	$5,000
Equipment Breakdown	Allied Heritage Insurance	CPP4493312	10/17/2024	10/17/2025	$1,000,000	$5,000
Ordinance & Law	Keystone Casualty	UMB7999197	06/19/2024	06/19/2025	$25,000,000	$25,000
Workers' Compensation	Blue Ridge Underwriters	GL1917225	10/03/2024	10/03/2025	$50,000,000	$10,000
Cyber Liability	Great Lakes Mutual	CPP8573559	04/29/2026	04/29/2027	$2,000,000	$25,000
Crime / Fidelity	Prairie State Indemnity	GL4478986	03/22/2026	03/22/2027	$5,000,000	$50,000
Pollution Legal Liability	Allied Heritage Insurance	UMB2863020	01/23/2026	01/23/2027	$10,000,000	$5,000
Employment Practices	Great Lakes Mutual	GL9838893	02/02/2024	02/01/2025	$2,000,000	$10,000

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1. Appointment. Owner appoints Manager as the exclusive managing agent of Kestrel Station District, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

3. Management Fee. Manager shall receive a monthly management fee equal to 3.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Spending Authority. Manager may incur expenses not exceeding $407,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Allied Heritage Insurance	UMB5095670	03/19/2025	03/19/2026	$2,000,000	$25,000
General Liability	Keystone Casualty	BOP6190769	08/02/2023	08/01/2024	$25,000,000	$50,000
Umbrella / Excess	Sentinel Property & Casualty	UMB5846109	08/31/2024	08/31/2025	$25,000,000	$10,000
Business Income	Blue Ridge Underwriters	UMB7359120	12/02/2024	12/02/2025	$50,000,000	$100,000
Flood	Prairie State Indemnity	BOP9144902	11/23/2023	11/22/2024	$2,000,000	$100,000
Windstorm / Hail	Blue Ridge Underwriters	UMB4621425	12/12/2024	12/12/2025	$50,000,000	$50,000
Terrorism (TRIA)	Keystone Casualty	UMB2793628	11/22/2025	11/22/2026	$10,000,000	$10,000
Equipment Breakdown	Blue Ridge Underwriters	GL4332694	05/02/2026	05/02/2027	$1,000,000	$100,000
Ordinance & Law	Prairie State Indemnity	BOP2959134	06/01/2024	06/01/2025	$10,000,000	$100,000
Workers' Compensation	Blue Ridge Underwriters	CPP3918455	06/06/2024	06/06/2025	$50,000,000	$10,000
Cyber Liability	Allied Heritage Insurance	CPP7281092	01/26/2023	01/26/2024	$50,000,000	$100,000
Crime / Fidelity	Sentinel Property & Casualty	UMB9090804	08/27/2023	08/26/2024	$5,000,000	$50,000
Pollution Legal Liability	Great Lakes Mutual	UMB8993119	04/15/2023	04/14/2024	$2,000,000	$50,000
Employment Practices	Allied Heritage Insurance	BOP8539429	01/21/2025	01/21/2026	$10,000,000	$10,000

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Kestrel Station District, and Manager accepts the appointment under the terms of this Agreement. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

12. Management Fee. Manager shall receive a monthly management fee equal to 5.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Great Lakes Mutual	BOP7701430	08/09/2023	08/08/2024	$25,000,000	$50,000
General Liability	Prairie State Indemnity	CPP7346509	05/08/2024	05/08/2025	$25,000,000	$100,000
Umbrella / Excess	Sentinel Property & Casualty	CPP9660759	12/23/2023	12/22/2024	$50,000,000	$5,000
Business Income	Allied Heritage Insurance	UMB4866431	01/24/2024	01/23/2025	$10,000,000	$25,000
Flood	Allied Heritage Insurance	CPP3613121	07/14/2024	07/14/2025	$5,000,000	$5,000
Windstorm / Hail	Blue Ridge Underwriters	BOP7329957	09/29/2023	09/28/2024	$5,000,000	$5,000
Terrorism (TRIA)	Blue Ridge Underwriters	CPP7926613	04/15/2025	04/15/2026	$5,000,000	$100,000
Equipment Breakdown	Sentinel Property & Casualty	UMB4927465	03/27/2023	03/26/2024	$5,000,000	$5,000
Ordinance & Law	Allied Heritage Insurance	GL4293372	01/06/2023	01/06/2024	$1,000,000	$100,000
Workers' Compensation	Allied Heritage Insurance	GL2555541	11/09/2023	11/08/2024	$25,000,000	$100,000
Cyber Liability	Blue Ridge Underwriters	UMB9904011	02/06/2024	02/05/2025	$2,000,000	$5,000
Crime / Fidelity	Great Lakes Mutual	GL2133611	02/24/2025	02/24/2026	$5,000,000	$5,000
Pollution Legal Liability	Allied Heritage Insurance	BOP9113734	03/06/2026	03/06/2027	$5,000,000	$5,000
Employment Practices	Allied Heritage Insurance	CPP4243551	12/07/2024	12/07/2025	$50,000,000	$25,000

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

16. Spending Authority. Manager may incur expenses not exceeding $99,000 individually without Owner approval, except in an emergency threatening life or property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Kestrel Station District, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

21. Management Fee. Manager shall receive a monthly management fee equal to 7.6% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Time is of the essence with respect to each and every provision of this instrument.

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Sentinel Property & Casualty	BOP4403915	04/11/2024	04/11/2025	$1,000,000	$50,000
General Liability	Allied Heritage Insurance	CPP6038474	05/17/2025	05/17/2026	$10,000,000	$10,000
Umbrella / Excess	Blue Ridge Underwriters	CPP2860048	08/17/2025	08/17/2026	$5,000,000	$10,000
Business Income	Allied Heritage Insurance	UMB3807202	01/30/2023	01/30/2024	$2,000,000	$10,000
Flood	Sentinel Property & Casualty	CPP5100654	11/23/2024	11/23/2025	$50,000,000	$50,000
Windstorm / Hail	Prairie State Indemnity	BOP7168931	03/30/2024	03/30/2025	$25,000,000	$10,000
Terrorism (TRIA)	Prairie State Indemnity	BOP5220076	02/13/2024	02/12/2025	$1,000,000	$10,000
Equipment Breakdown	Sentinel Property & Casualty	BOP3856331	02/03/2025	02/03/2026	$50,000,000	$100,000
Ordinance & Law	Sentinel Property & Casualty	BOP2576808	06/20/2023	06/19/2024	$1,000,000	$25,000
Workers' Compensation	Great Lakes Mutual	UMB6100751	05/05/2023	05/04/2024	$2,000,000	$5,000
Cyber Liability	Sentinel Property & Casualty	BOP7721618	03/27/2025	03/27/2026	$2,000,000	$50,000
Crime / Fidelity	Allied Heritage Insurance	UMB8016703	03/02/2026	03/02/2027	$1,000,000	$10,000
Pollution Legal Liability	Blue Ridge Underwriters	CPP8227728	11/21/2024	11/21/2025	$2,000,000	$100,000
Employment Practices	Prairie State Indemnity	CPP3890512	05/29/2026	05/29/2027	$2,000,000	$100,000

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22. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

23. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

24. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

25. Spending Authority. Manager may incur expenses not exceeding $40,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

26. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

27. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

28. Appointment. Owner appoints Manager as the exclusive managing agent of Kestrel Station District, and Manager accepts the appointment under the terms of this Agreement. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Prairie State Indemnity	UMB4337180	12/15/2023	12/14/2024	$50,000,000	$5,000
General Liability	Prairie State Indemnity	CPP4506958	03/25/2023	03/24/2024	$25,000,000	$10,000
Umbrella / Excess	Sentinel Property & Casualty	GL4184409	02/23/2026	02/23/2027	$25,000,000	$100,000
Business Income	Great Lakes Mutual	UMB9649704	03/26/2025	03/26/2026	$50,000,000	$100,000
Flood	Great Lakes Mutual	BOP9786614	02/07/2023	02/07/2024	$5,000,000	$10,000
Windstorm / Hail	Sentinel Property & Casualty	BOP6048817	05/27/2026	05/27/2027	$1,000,000	$100,000
Terrorism (TRIA)	Great Lakes Mutual	GL1908668	03/01/2023	02/29/2024	$25,000,000	$50,000
Equipment Breakdown	Blue Ridge Underwriters	BOP2490452	02/02/2026	02/02/2027	$1,000,000	$100,000
Ordinance & Law	Sentinel Property & Casualty	UMB4242160	12/04/2024	12/04/2025	$1,000,000	$10,000
Workers' Compensation	Prairie State Indemnity	GL9063878	10/25/2025	10/25/2026	$50,000,000	$5,000
Cyber Liability	Prairie State Indemnity	GL5531367	04/19/2023	04/18/2024	$1,000,000	$25,000
Crime / Fidelity	Keystone Casualty	GL3563435	05/18/2023	05/17/2024	$50,000,000	$100,000
Pollution Legal Liability	Great Lakes Mutual	BOP9798688	04/07/2025	04/07/2026	$1,000,000	$10,000
Employment Practices	Prairie State Indemnity	UMB3899969	09/24/2023	09/23/2024	$25,000,000	$25,000

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29. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

30. Management Fee. Manager shall receive a monthly management fee equal to 7.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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32. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

33. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

34. Spending Authority. Manager may incur expenses not exceeding $161,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

35. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Keystone Casualty	UMB8386771	12/28/2025	12/28/2026	$5,000,000	$5,000
General Liability	Keystone Casualty	UMB7052610	03/05/2025	03/05/2026	$2,000,000	$10,000
Umbrella / Excess	Allied Heritage Insurance	UMB9398895	11/04/2025	11/04/2026	$50,000,000	$25,000
Business Income	Allied Heritage Insurance	UMB3009741	07/04/2025	07/04/2026	$1,000,000	$5,000
Flood	Keystone Casualty	GL7009898	02/26/2023	02/26/2024	$5,000,000	$100,000
Windstorm / Hail	Keystone Casualty	GL4748696	04/15/2023	04/14/2024	$1,000,000	$5,000
Terrorism (TRIA)	Great Lakes Mutual	BOP7739176	07/05/2025	07/05/2026	$10,000,000	$25,000
Equipment Breakdown	Keystone Casualty	BOP1978501	12/21/2024	12/21/2025	$25,000,000	$100,000
Ordinance & Law	Great Lakes Mutual	UMB9076467	04/13/2024	04/13/2025	$2,000,000	$50,000
Workers' Compensation	Sentinel Property & Casualty	UMB4517465	04/26/2026	04/26/2027	$2,000,000	$50,000
Cyber Liability	Blue Ridge Underwriters	GL1034616	05/21/2025	05/21/2026	$2,000,000	$10,000
Crime / Fidelity	Keystone Casualty	CPP6531667	07/26/2023	07/25/2024	$1,000,000	$10,000
Pollution Legal Liability	Prairie State Indemnity	GL1039563	10/18/2025	10/18/2026	$1,000,000	$50,000
Employment Practices	Blue Ridge Underwriters	BOP1848602	03/21/2023	03/20/2024	$50,000,000	$10,000

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37. Appointment. Owner appoints Manager as the exclusive managing agent of Kestrel Station District, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

38. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

39. Management Fee. Manager shall receive a monthly management fee equal to 3.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

40. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

41. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

42. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only